WHITBOURNE PARISH COUNCIL

General Privacy Notice

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Your personal data – what is it?

“Personal data” is any information about a living individual, which allows them to be identified from that data (for example a name, photographs, videos, email address, or address). Identification can be by directly using the data itself or by combining it with other information, which helps to identify a living individual. The processing of personal data is governed by legislation relating to personal data, which applies in the United Kingdom including the UK General Data Protection Regulation (UK GDPR) and other legislation relating to personal data and rights such as the Human Rights Act.

Who are we?

This Privacy Notice is provided to you by Whitbourne Parish Council, which is the data controller for your data.

Other organisations

We may use service providers acting as processors under contract and may share information with independent controllers where necessary and lawful. A contractor is not a controller merely because it supplies a service. Herefordshire Council or another body will be described as an independent or joint controller only for a defined activity supported by the relevant arrangement. If purposes and means are jointly determined, we will document the arrangement and make its essence available.

The Council will process some or all of the following personal data where necessary to perform its tasks:

Depending on the relevant activity, we may process:

- names and contact details;
- correspondence, enquiries and consultation responses;
- meeting, governance and statutory records;
- information needed to provide or administer a Council service, asset or facility actually operated by the Council; and
- finance, supplier, contract and grant information.

We process special-category or criminal-offence data only where a defined activity requires it and the applicable Article 6, Article 9 or Article 10/DPA 2018 conditions have been recorded.

The Council will comply with data protection law. This says that the personal data we hold about you must be:

- Used lawfully, fairly and in a transparent way.

- Collected only for valid purposes that we have clearly explained to you and not used in any way that is incompatible with those purposes.
- Relevant to the purposes we have told you about and limited only to those purposes.
- Accurate and kept up to date.
- Kept only as long as necessary for the purposes we have told you about.
- Kept and destroyed securely including ensuring that appropriate technical and security measures are in place to protect your personal data to protect personal data from loss, misuse, unauthorised access and disclosure.

Why we use personal data and our lawful bases

We use personal data only where necessary to: respond to enquiries and consultation responses; provide and administer Council services, assets or facilities actually operated by the Council; carry out meeting, governance and statutory functions; maintain accounts and records; administer suppliers, contracts, grants and authorised payments; protect public funds; and communicate about Council business where lawful.

Depending on the activity, our lawful basis is public task or official authority, legal obligation, contract or steps before contract, consent, or another basis permitted by law. Public task is used only where processing is necessary for the Council's own functions, duties or powers and the legal basis is documented. We do not rely on recognised legitimate interests for our own public tasks.

Where another body makes a request for disclosure for its public task, we will consider and record the request, necessity, proportionality and our lawful basis before disclosing. The new recognised-legitimate-interest provisions do not remove that assessment.

Sharing your personal data

We share personal data only where necessary and lawful. Processors act on our documented instructions and under an appropriate contract. Independent controllers process personal data under their own responsibilities. If we and another controller jointly determine purposes and means, we will document the arrangement and make its essence available. The relevant privacy information will identify actual recipients or categories of recipient.

How long do we keep your personal data?

We retain personal data in accordance with the Council's approved retention arrangements, applicable legal duties and the need to establish, exercise or defend legal claims. The applicable retention period, or the criteria used to determine it, will be provided for the relevant processing activity on request. We securely delete or anonymise personal data when it is no longer required.

Your rights and your personal data

Depending on the circumstances and the lawful basis used, you may have rights of access, rectification, erasure, restriction, objection and data portability. You may also withdraw consent at any time where consent is the basis for processing. Withdrawal does not affect processing carried out before withdrawal.

Some rights do not apply in every case; for example, data portability does not apply to processing necessary for the Council's public tasks. We may ask for proportionate evidence of identity only where we have reasonable doubts about identity.

Right to object

Where we process personal data because it is necessary for a public task or the exercise of official authority, you have the right to object on grounds relating to your particular situation. We will stop the processing unless we demonstrate compelling legitimate grounds which override your interests, rights and freedoms, or the processing is needed for legal claims.

You may exercise a right by contacting the Clerk using the details below. We will respond in accordance with the UK GDPR and will explain any limitation or refusal.

Data-protection complaints

You may make a data-protection complaint to the Clerk by email or post using the contact details in this document. We will facilitate the making of complaints, acknowledge receipt within 30 days, take appropriate steps to investigate and respond without undue delay, keep you informed of progress where appropriate, and tell you the outcome. You may also complain to the Information Commissioner's Office (ICO). Current ICO contact details are available at https://ico.org.uk/make-a-complaint/.

International transfers

If we make a restricted transfer of personal data outside the United Kingdom, we will ensure that it is covered by UK adequacy regulations, appropriate safeguards or an applicable exception. Where required, we will complete the data protection test and will provide information about the safeguard on request. The fact that information on the Council's website can be viewed from overseas does not, by itself, mean that the Council has made a restricted transfer.

Further processing

Before using personal data for a new purpose, we will identify a lawful basis, assess compatibility where required and provide updated privacy information where the UK GDPR requires. Consent will be sought only where it is the appropriate lawful basis.

Changes to this notice

We keep this notice under regular review and publish the current version on the Council's website. The controlled version will state its issue date, version and next review date.

WHITBOURNE PARISH COUNCIL

Contact details

Whitbourne Parish Council is the controller. For data-protection enquiries, rights requests and complaints, contact the Clerk, Whitbourne Parish Council, Stockings Barn, Whitbourne, Herefordshire WR6 5SR. Email: whitbournepcclerk@outlook.com. The Council will publish the contact details of a data protection officer only if it appoints one.